

section 2023.010(d). See Horst Decl., ¶6 *et seq.*

2. Failure to Meet and Confer in Good Faith. Defendant's failure to respond to meet and confer efforts regarding the Discovery Requests after the late responses were finally served constitutes failing to confer with an opposing party or attorney in a reasonable and good faith attempt to resolve informally any dispute concerning discovery, pursuant to Code of Civil Procedure section 2023.010(i). See Horst Decl., ¶¶10-13.

3. Misuse of Discovery Process. The Court finds that the foregoing conduct by Defendant constituted conduct that was a misuse of the discovery process within the meaning of Code of Civil Procedure section 2023.030 and that such conduct warrants the imposition of monetary sanctions.

Disposition

The Court further finds and orders as follows:

1. The Motion to Compel Further Responses is CONTINUED to **May 4, 2026, 9:00 am in Department 34.**
2. The Joint Statement shall be filed no later than **April 20, 2026.**
3. If the case otherwise resolves, the Joint Statement may simply indicate that the motion is withdrawn in light of a final settlement.

6. 9:00 AM CASE NUMBER: C25-00713
CASE NAME: PRAVEEN GUPTA VS. THE VINTNER CONDOMINIUM HOMEOWNERS ASSOCIATION
HEARING ON DEMURRER TO: 1ST AMENDED COMPLAINT
FILED BY: AXIS CONSTRUCTION INC
TENTATIVE RULING:

See Line 8.

7. 9:00 AM CASE NUMBER: C25-00713
CASE NAME: PRAVEEN GUPTA VS. THE VINTNER CONDOMINIUM HOMEOWNERS ASSOCIATION
***HEARING ON MOTION IN RE: STRIKE PORTIONS OF 1ST AMENDED COMPLAINT**
FILED BY: AXIS CONSTRUCTION INC
TENTATIVE RULING:

See Line 8.

8. 9:00 AM CASE NUMBER: C25-00713
CASE NAME: PRAVEEN GUPTA VS. THE VINTNER CONDOMINIUM HOMEOWNERS ASSOCIATION
HEARING ON DEMURRER TO: 1ST AMENDED COMPLAINT

FILED BY: NEW PIPES INC

TENTATIVE RULING:

Before the Court is Defendant New Pipes, Inc.’s Demurrer to First Amended Complaint.

Procedural Background

This matter relates to alleged improper repairs and construction impacting real property located within the Vintner Condominium Association (the “Property”). (¶ 7.) The actions at issue appear to have started in 2019 and continue to present. (¶¶ 21-28.) The FAC does not include an address for the Property or legal description thereof.

Plaintiffs filed the initial Complaint on March 13, 2025. The initial Complaint included Praveen Gupta and Wisdom Tree Properties, LLC as plaintiffs. Defendant Vintner Condominium Homeowners’ Association (“Vintner”) filed a demurrer on April 18, 2025. A basis for the demurrer was that the Complaint was uncertain as to who the proper plaintiff was and that if Wisdom Tree was properly a plaintiff that Mr. Gupta could not represent it given that he is not an attorney.

The Court sustained the demurrer finding that the Complaint was uncertain as to what plaintiff owned the Property during the relevant time and the basis for the claims for damages. The Court noted in its Order: “If the amended complaint includes Wisdom Tree as a plaintiff, it must be filed by a licensed California attorney. Also, the amended complaint should be more explicit as to what allegations and causes of action are being plead as to each Plaintiff.”

Plaintiffs filed the operative First Amended Complaint on September 15, 2025. The FAC now indicates that the Plaintiffs are Praveen Gupta, individually, and as Trustee of Praveen and Madhu Gupta Living Trust (the “Trust”). Relevant to the ownership of the Property, the FAC states:

From on or about 2012 through on or about 2018, Praveen Gupta and Madhu Gupta held record title to the Property. From on or about 2018 through on or about early 2025, Wisdom Tree Properties, LLC—a California limited liability company wholly owned by Praveen Gupta and Madhu Gupta—held record title. In or about early 2025, title was lawfully transferred from Wisdom Tree Properties, LLC to the Praveen and Madhu Gupta Living Trust, which is the current sole owner of the Property. (¶ 16.)

The FAC alleges nine causes of action, five of which are asserted against Defendant New Pipes: (a) trespass (2nd CoA); (b) private nuisance (3rd CoA); (c) negligence (4th CoA); (d) declaratory relief (6th CoA); and (e) negligent undertaking (9th CoA). New Pipes demurs to each of the causes of action, as well as to the FAC as a whole due to Mr. Gupta’s inability to represent the Trust.

Legal Standard

“The function of a demurrer is to test the sufficiency of the complaint as a matter of law.” (*Holiday Matinee, Inc. v. Rambus, Inc.* (2004) 118 Cal.App.4th 1413, 1420.) A complaint “is sufficient if it alleges ultimate rather than evidentiary facts” (*Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 550 (“*Doe*”)), but the plaintiff must set forth the essential facts of his or her case “with reasonable precision and

with particularity sufficient to acquaint [the] defendant with the nature, source and extent” of the plaintiff’s claim. (*Doheny Park Terrace Homeowners Assn., Inc. v. Truck Ins. Exchange* (2005) 132 Cal.App.4th 1076, 1099.) A complaint must be “liberally construed” and a demurrer “overruled if any cause of action is stated by the plaintiff.” (*Amacorp Industrial Leasing Co. v. Robert C. Young Associates, Inc.* (1965) 237 Cal.App.2d 724, 727.)

Legal conclusions are insufficient. (*Id.* at 1098–99; *Doe* at 551, fn. 5.) The Court “assume[s] the truth of the allegations in the complaint, but do[es] not assume the truth of contentions, deductions, or conclusions of law.” (*California Logistics, Inc. v. State of California* (2008) 161 Cal.App.4th 242, 247.) A demurrer lies only for defects appearing on the face of the complaint or from matters of which the court must or may take judicial notice. (CCP § 430.40; *see Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) A demurrer may be filed to one of several causes of action in a complaint. (Cal. R. Ct. 3.1320(b).)

Analysis

Timeliness of First Amended Complaint

New Pipe argues that the FAC should be stricken as it was untimely filed. The Court heard argument on Vintner HOA’s demurrer to the original Complaint on August 25, 2025. After hearing argument, the Court affirmed its tentative sustaining the demurrer with leave to amend. The Order indicated that Mr. Gupta was to file the amended complaint “within 21 days of entry of this Order.”

A prevailing party must prepare and submit an order after hearing which is then signed by the Court and entered. (Cal. R. Ct. 3.1312.) Also, when “a motion is granted or denied, unless the court otherwise orders, notice of the court’s decision or other shall be given by the prevailing party to all other parties or their attorneys ... unless notice is waived by all parties in open court and is entered in the minutes.” (Code Civ. Proc. § 1019.5(a).)

The Court’s docket does not show that Vintner’s counsel submitted an order after hearing for the Court’s signature and entry. Even if the minute order confirming the tentative could be considered the “Order” of the Court, there is no indication Vintner provided notice of entry of the Order to any of the parties. Nor is there any minute order indicating that the parties waived notice in open court. As such, no final Order has been entered regarding that ruling and the clock never started for when to file the FAC.

Even if one presumes that the clock started on August 25, the FAC was timely filed. Based on that date, the FAC would be due on or before September 15, 2026. New Pipe claims that Mr. Gupta attempted to file the FAC on that date, but it was rejected by the Court. The Court’ docket, however, as confirmed by the version submitted by New Pipe, shows that the FAC was filed on that date:

It does appear that a substitution of attorney submission was rejected on that date, but the FAC was indeed filed on September 15, 2025. The header on the Court’s version of the FAC also clearly indicates that it was filed on September 15, 2025:

New Pipe, however, submits a version of the FAC which differs from the official Court version. Specifically, the header which shows when the document was filed appears altered:

The footer also shows different information displaying an impossible date upon which it was

processed:

Court's official version:

The Court does not know where New Pipe's counsel obtained their version of the FAC, but it does not appear to be from the Court's files. Counsel are encouraged to only obtain the documents from the Court and not rely on other services for providing those documents.

The FAC was timely filed.

Standing

"Standing is a threshold issue necessary to maintain a cause of action, and the burden to allege and establish standing lies with the plaintiff." (*People ex rel. Becerra v. Superior Court* (2018) 29 Cal.App.5th 486, 495.) The issue of "lack of standing may be raised by demurrer." (*Martin v. Bridgeport Community Assn., Inc.* (2009) 173 Cal.App.4th 1024, 1031 citations omitted.)

As outlined above, the Trust is alleged to be the current owner of the Property and has been since "early 2025." (¶ 16.) Prior to that, Wisdom Tree owned the Property from about 2018 through early 2025. (*Ibid.*) Plaintiff Praveen Gupta is alleged to have owned the Property, along with Madhu Gupta, from about 2012 to 2018. The actions at issue in this matter are alleged to have occurred beginning in 2019. As such, the time when Mr. and Mrs. Gupta held title to the Property are not at issue.

Code of Civil Procedure section 367 establishes the rule that "[e]very action must be prosecuted in the name of the real party in interest, except as otherwise provided by statute." "A real party in interest is one who has 'an actual and substantial interest in the subject matter of the action and who would be benefited or injured by the judgment in the action.'" (*Martin*, supra, 173 Cal.App.4th at 1031.) As the current owner of the Property, the Trust would appear to have standing to bring this litigation.

As noted by New Pipes, however, a trustee who is not an attorney cannot represent a trust in litigation outside of the probate context. The Court in *Ziegler v. Nickel* (1998) 64 Cal.App.4th 545 tackled this issue of first impression and adopted the holding of the Supreme Court of Nebraska which held:

It is true that, as a general rule, a trust is not a legal personality, and the trustee is the proper person to sue or be sued on behalf of such trust. [Citations.] However ... a trustee's duties in connection with his or her office do not include the right to present argument [in propria persona] in courts of the state, because in this capacity such trustee would be representing *interests of others* and would therefore be engaged in the unauthorized practice of law. (*Id.* at 548 quoting *Back Acres Pure Trust v. Fahnlander* (1989) 233 Neb. 28, 29.)

The *Ziegler* court summarized: "A nonattorney trustee who represents the trust in court is representing and affecting the interests of the beneficiary and is thus engaged in the unauthorized practice of law." (*Id.* at 549 citing Bus. & Prof. Code § 6125.)

While there might be an applicable exception to this rule if Mr. Gupta was the sole trust settlor and

beneficiary under the trust, but he does not allege as much and it appears from the nature of the described trust that he is not. (See *Aulisio v. Bancroft* (2014) 230 Cal.App.4th 1516, 1524 (a trustee litigating on behalf of a trust in which he as the settlor has designated himself the sole beneficiary is not representing the interests of others.) In his opposition, Mr. Gupta states that, despite the caption of the FAC, he “proceeds in this action in his individual capacity, not as a trustee.” (Opp. at 14:9.) He asserts that the Property was transferred from the Trust to him on January 28, 2026. (*Id.* at 14:10-11; Gupta Decl. ¶ 2.) Mr. Gupta contends that he filed a motion to change caption to ‘formally remove the trustee designation’ and that the ‘trust-capacity label in the caption is a technical issue, not a substantive defect in the claims.” (*Id.* at 14:14-16.)

There are several problems with Mr. Gupta’s arguments. First, none of the above is contained in the FAC. Nor does Mr. Gupta seek judicial notice of any information that could establish it. On a demurrer, the Court is limited to the allegations of the complaint and matters that are subject of judicial notice. (Code Civ. Proc. § 430.40; see *Blank*, supra, 39 Cal.3d at 318.)

Second, Mr. Gupta’s claim that the Trust is not a party is undermined by the allegations of the FAC which indicate that it is the owner of the Property. Mr. Gupta was not the owner of the Property during the relevant time. As such, if the Trust is not a party, Mr. Gupta has not alleged in the FAC any basis for his standing to pursue the claims set forth therein. While he contends that all claims were assigned to him, there are no allegations in the FAC indicating this is the case. The FAC alleges that the Trust has owned the Property since early 2025. Prior to that, Wisdom Tree owned the Property – with regards to the times at issue in this matter. Mr. Gupta is not alleged to have any interest in the Property during the times relevant to this matter. Thus, per the allegations of the Complaint, he has no standing to bring this action. He also cannot represent the Trust as he is not an attorney.

Other Challenges to the FAC

In addition to the demurrer, New Pipe also filed a motion to strike portions of the FAC to be heard concurrently with the demurrer. Defendant Axis filed a demurrer and motion to strike directed toward the FAC on October 15, 2025. Defendant Vintner filed a demurrer and motion to strike on October 22, 2025. The Vintner and Axis papers are set for hearing concurrently with New Pipe’s demurrer.

Given the Court’s ruling on New Pipe’s demurrer finding that Plaintiff does not have standing to bring the claims asserted in the FAC, the other parties’ demurrers and motions to strike are moot and the Court does not address the arguments raised therein at this time.

Conclusion

New Pipe’s demurrer is **SUSTAINED, with leave to amend**, as to all causes of action based on the lack of standing. As there is no proper Plaintiff currently before the Court, the Court will not rule on the other grounds raised by New Pipe at this time. Mr. Gupta shall file his amended complaint within ten (10) days of notice of entry of the Order on this Demurrer..

9. 9:00 AM CASE NUMBER: C25-00713
CASE NAME: PRAVEEN GUPTA VS. THE VINTNER CONDOMINIUM HOMEOWNERS ASSOCIATION
*HEARING ON MOTION IN RE: STRIKE AND DISMISS 1ST AMENDED COMPLAINT
FILED BY: NEW PIPES INC
TENTATIVE RULING:

Denied as moot. See line 8.

10. 9:00 AM CASE NUMBER: C25-00713
CASE NAME: PRAVEEN GUPTA VS. THE VINTNER CONDOMINIUM HOMEOWNERS ASSOCIATION
HEARING ON DEMURRER TO: 1ST AMENDED COMPLAINT
FILED BY: THE VINTNER CONDOMINIUM HOMEOWNERS ASSOCIATION
TENTATIVE RULING:

The Court notes that Defendant Vintner raises similar standing arguments as those set forth by Defendant New Pipes. Defendant Vintner's demurrer is **SUSTAINED** for the same reasons as those set forth in the ruling on New Pipes' demurrer. See line 8.

11. 9:00 AM CASE NUMBER: C25-00713
CASE NAME: PRAVEEN GUPTA VS. THE VINTNER CONDOMINIUM HOMEOWNERS ASSOCIATION
*HEARING ON MOTION IN RE: STRIKE FIRST AMENDED COMPLAINT
FILED BY: THE VINTNER CONDOMINIUM HOMEOWNERS ASSOCIATION
TENTATIVE RULING:

See Line 8.

12. 9:00 AM CASE NUMBER: C25-01210
CASE NAME: SHARON DE EDWARDS MD VS. NANDI ROBISON
*HEARING ON MOTION IN RE: MOTION TO DISMISS CONTINUED FROM 2/2/26
FILED BY:
TENTATIVE RULING:

Before the Court is Defendant Nandi Robison's Motion to Dismiss.

Factual Allegations and Procedural Background

This matter pertains to allegations that Plaintiff provided medical services to Defendant for which Defendant failed to make payment. It is alleged that Defendant initially used a credit card to charge \$451.91 for a medical consultation. Defendant thereafter reported the charge to her credit card company as a fraudulent charge and received a refund. After calling the credit card company, Defendant went to Plaintiff's office and indicated that her health plan was sending payment for the services and requested a refund of the \$451.91. Plaintiff issued Defendant a check for \$476.91 (which